



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

SB 1162: health care institutions; licensing; compliance

BLISS FLOOR AMENDMENT

1. Incorporates the HHS Committee amendment with revisions.
2. Revises the definition of *behavioral health technician*.
3. Allows a behavioral health technician to provide services consistent with the individual's training, delegation and supervision, as outlined.

BLISS SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1162

I move the following SUBSTITUTE amendment to the HEALTH & HUMAN SERVICES Committee Amendment to
SENATE BILL 1162 (Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 4, article 1, Arizona Revised
3 Statutes, is amended by adding section 36-405.04, to read:

4 36-405.04. Licensing and monitoring of health care
5 institutions; joint review of monitoring and
6 compliance functions; reporting requirement

7 A. THE DEPARTMENT SHALL LICENSE AND MONITOR THE OPERATION OF HEALTH
8 CARE INSTITUTIONS TO ENSURE COMPLIANCE WITH THIS CHAPTER.

9 B. THE DEPARTMENT AND THE ARIZONA HEALTH CARE COST CONTAINMENT
10 SYSTEM SHALL COORDINATE TO REVIEW MONITORING AND COMPLIANCE FUNCTIONS TO
11 IDENTIFY AREAS OF OVERLAP RELATED TO HEALTH CARE INSTITUTION LICENSING
12 STANDARDS. THE REVIEW MUST INCLUDE, AT A MINIMUM:

13 1. LICENSING, CERTIFICATION AND ENROLLMENT REQUIREMENTS.

14 2. ON-SITE SURVEYS, INSPECTIONS, AUDITS AND OTHER COMPLIANCE
15 ACTIVITIES.

16 3. DATA COLLECTION AND REPORTING REQUIREMENTS.

17 4. CORRECTIVE ACTION AND ENFORCEMENT PROCESSES APPLICABLE TO HEALTH
18 CARE INSTITUTIONS.

19 C. THE DEPARTMENT AND THE ARIZONA HEALTH CARE COST CONTAINMENT
20 SYSTEM SHALL:

21 1. IDENTIFY OPPORTUNITIES TO ELIMINATE OR REDUCE DUPLICATIVE,
22 REDUNDANT OR INCONSISTENT REQUIREMENTS WHILE MAINTAINING PATIENT SAFETY
23 AND APPROPRIATE REGULATORY OVERSIGHT.

24 2. COORDINATE OR ALIGN POLICIES, PROCEDURES AND OPERATIONAL
25 PRACTICES TO MINIMIZE ADMINISTRATIVE BURDENS ON HEALTH CARE INSTITUTIONS.

1 D. THIS SECTION DOES NOT REQUIRE ANY ACTION THAT IS INCONSISTENT
2 WITH FEDERAL MEDICAID CONDITIONS OF PARTICIPATION~~[,--]~~ [OR] CONDITIONS OF
3 PAYMENT OR OTHER APPLICABLE FEDERAL REQUIREMENTS.

4 E. ON OR BEFORE DECEMBER 31, 2026 AND ON OR BEFORE OCTOBER 31 EVERY
5 FOUR YEARS THEREAFTER, THE DEPARTMENT SHALL SUBMIT A WRITTEN REPORT TO THE
6 HOUSE OF REPRESENTATIVES AND THE SENATE HEALTH AND HUMAN SERVICES
7 COMMITTEES, OR THEIR SUCCESSOR COMMITTEES, THAT SUMMARIZES THE FINDINGS OF
8 THE REVIEW, IDENTIFIES AREAS OF DUPLICATION OR OVERLAP AND INCLUDES
9 RECOMMENDATIONS FOR STATUTORY, REGULATORY OR ADMINISTRATIVE CHANGES.

10 [F. ON OR BEFORE DECEMBER 31, 2026, THE DEPARTMENT AND THE ARIZONA
11 HEALTH CARE COST CONTAINMENT SYSTEM SHALL REVIEW THEIR RULES AND POLICIES
12 RELATING TO BEHAVIORAL HEALTH TECHNICIANS TO ENSURE ALIGNMENT WITH ARTICLE
13 4.1 OF THIS CHAPTER.]

14 <<Sec. 2. Title 36, chapter 4, Arizona Revised Statutes, is amended
15 by adding article 4.1, to read:

16 ARTICLE 4.1. BEHAVIORAL HEALTH TECHNICIANS

17 36-444. Definition of behavioral health technician

18 [IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES, "BEHAVIORAL
19 HEALTH TECHNICIAN" MEANS AN INDIVIDUAL TO WHOM ALL OF THE FOLLOWING APPLY:

20 1. IS EMPLOYED BY A BEHAVIORAL HEALTH FACILITY OR BY A HOSPITAL
21 AUTHORIZED TO PROVIDE PSYCHIATRIC SERVICES THAT IS A LICENSED HEALTH CARE
22 INSTITUTION PURSUANT TO THIS CHAPTER.

23 2. PROVIDES BEHAVIORAL HEALTH SERVICES UNDER THE SUPERVISION OR
24 CLINICAL OVERSIGHT OF EITHER:

25 (a) A LICENSED BEHAVIORAL HEALTH PROFESSIONAL.

26 (b) A REGISTERED NURSE WHO IS LICENSED PURSUANT TO TITLE 32,
27 CHAPTER 15, WHO IS WORKING WITHIN THE REGISTERED NURSE'S SCOPE OF PRACTICE
28 AND WHO IS PROVIDING SUPERVISION IN A FACILITY THAT IS LICENSED AS A
29 HOSPITAL PURSUANT TO THIS CHAPTER.

30 3. PERFORMS ONLY DELEGATED CLINICAL AND SUPPORTIVE FUNCTIONS
31 CONSISTENT WITH THE INDIVIDUAL'S DEMONSTRATED TRAINING AND COMPETENCE AND
32 THE EMPLOYING BEHAVIORAL HEALTH FACILITY'S OR HOSPITAL'S POLICIES AND
33 PROCEDURES.]

34 36-444.01. Qualifications; standards

35 [A. A BEHAVIORAL HEALTH TECHNICIAN SHALL:

36 1. BE AT LEAST EIGHTEEN YEARS OF AGE.

37 2. POSSESS A MINIMUM OF A HIGH SCHOOL DIPLOMA OR THE EQUIVALENT.

38 3. SUCCESSFULLY COMPLETE ANY REQUIRED BACKGROUND CHECKS.

39 B. BEFORE PROVIDING SUPERVISED DIRECT SERVICES, A BEHAVIORAL HEALTH
40 TECHNICIAN SHALL COMPLETE TRAINING THAT ADDRESSES:

41 1. BEHAVIORAL HEALTH SYSTEM ORIENTATION.

42 2. CONFIDENTIALITY AND COMPLIANCE.

43 3. PROFESSIONAL BOUNDARIES AND ETHICS.

44 4. CRISIS RESPONSE AND DE-ESCALATION TECHNIQUES AND SKILLS.

45 5. TRAUMA-INFORMED AND RECOVERY-ORIENTED CARE.

1 C. A BEHAVIORAL HEALTH FACILITY OR HOSPITAL MAY ADOPT INTERNAL
2 STANDARDS FOR BEHAVIORAL HEALTH TECHNICIANS THAT EXCEED STATUTORY
3 MINIMUMS. THE EMPLOYING BEHAVIORAL HEALTH FACILITY OR HOSPITAL SHALL
4 PROVIDE ONGOING TRAINING THAT THE BEHAVIORAL HEALTH FACILITY OR HOSPITAL
5 REQUIRES OR THAT IS REQUIRED BY LAW.]

6 36-444.02. Duties

7 [A. A BEHAVIORAL HEALTH TECHNICIAN MAY PROVIDE SERVICES CONSISTENT
8 WITH THE INDIVIDUAL'S TRAINING, DELEGATION AND SUPERVISION, INCLUDING:

9 1. IMPLEMENTING CLIENT TREATMENT, SERVICE OR RECOVERY PLANS.

10 2. PROVIDING SKILLS TRAINING AND SUPPORTIVE COUNSELING TO SUPPORT
11 BEHAVIORAL, EMOTIONAL AND RECOVERY-ORIENTED FUNCTIONING OF CLIENTS.

12 3. ASSISTING WITH CLIENT SELF-ADMINISTRATION OF MEDICATION AS
13 AUTHORIZED BY LAW OR WITHIN AN APPLICABLE SCOPE OF PRACTICE.

14 4. COMPLETING DOCUMENTATION AND CLERICAL ACTIVITIES RELATED TO
15 CLIENT CARE.

16 5. CONTRIBUTING TO CLIENT ASSESSMENTS AND SERVICE PLANNING,
17 INCLUDING:

18 (a) INTERVIEWING AND RECORDING CLIENT HISTORY, CURRENT STATUS AND
19 DESIRED GOALS.

20 (b) GATHERING AND RECORDING COLLATERAL AND SUPPORTIVE DOCUMENTATION
21 TO ASSIST IN DEVELOPING THE SERVICE PLAN.

22 (c) RECORDING STRENGTHS, NEEDS, ABILITIES AND PREFERENCES INTO A
23 SERVICE PLAN.

24 6. PROVIDING EDUCATION REGARDING TREATMENT OPTIONS AND COMMUNITY
25 RESOURCES.

26 7. SUBMITTING ALLOWABLE BILLING CONSISTENT WITH PAYER REQUIREMENTS.

27 8. SUPPORTING MOBILE CRISIS TEAMS AND THEIR INTERVENTIONS,
28 INCLUDING ENGAGEMENT, DE-ESCALATION, SAFETY PLANNING, FOLLOW-UP
29 COORDINATION, COLLECTION OF COLLATERAL INFORMATION AND ASSISTANCE WITH
30 ASSESSMENT ACTIVITIES.

31 9. PROVIDING CLIENT TRANSPORTATION, MEAL PREPARATION AND DAILY
32 LIVING SUPPORTS CONSISTENT WITH TREATMENT GOALS.

33 10. SCHEDULING CLIENT APPOINTMENTS AND PROVIDING CASE MANAGEMENT
34 SUPPORT ACTIVITIES.

35 11. MONITORING AND DOCUMENTING VITAL SIGNS OF CLIENTS AND OTHER
36 HEALTH INDICATORS FOR WHICH THE BEHAVIORAL HEALTH TECHNICIAN HAS RECEIVED
37 APPROPRIATE TRAINING AND AUTHORIZATION.

38 12. PROVIDING OTHER SUPPORTIVE OR REHABILITATIVE SERVICES
39 CONSISTENT WITH THE INDIVIDUAL'S TRAINING AND SUPERVISION AND THE
40 EMPLOYING BEHAVIORAL HEALTH FACILITY'S OR HOSPITAL'S LICENSE.

1 B. THIS SECTION DOES NOT AUTHORIZE ANY BEHAVIORAL HEALTH TECHNICIAN
2 TO DIAGNOSE MEDICAL OR BEHAVIORAL HEALTH CONDITIONS, PRESCRIBE MEDICATIONS
3 OR PROVIDE SERVICES BEYOND THOSE THAT ARE DELEGATED TO THE BEHAVIORAL
4 HEALTH TECHNICIAN AND SUPERVISED BY A LICENSED BEHAVIORAL HEALTH
5 PROFESSIONAL OR A REGISTERED NURSE WHO IS LICENSED PURSUANT TO TITLE 32,
6 CHAPTER 15.]>>

7 Enroll and engross to conform

8 Amend title to conform

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